

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
September 14, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

**Published September 8, 2026, 2:15 PM
Updated (final) September 11, 2026, 1:45 PM**

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **September 14, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0007002 In re the Estate of Murphy, Mary Carmen

Petition to confirm sale of real property (124 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (124 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Petition to confirm sale of real property (148 Hap Arnold)

Appearance is required for hearing on petition to confirm sale of real property (148 Hap Arnold).

Missing notice of sale. Missing proof of publication of notice of sale. Prob.C. § 10300; see also Prob.C. § 10312. Notice of sale and notice of confirmation hearing are distinct notices and both are required.

Missing service of notice of confirmation hearing to PR of the estate of Eugene Murphy, the sole heir of this estate. Missing proof of posting of notice of confirmation hearing. Prob.C. § 10308(c).

Missing reappraisal for sale. Prob.C. § 10309(a)(1)–(2). Administrator appears to misread the appraisal by the probate referee which fixes the date-of-death value of the property, not a date-of-appointment value.

Clarification: administrator requests approval of commissions of nearly 11% of the sale price, without explanation for the unusually high request.

2. S-PR-0012296 In Re the Estate of Donald, Blane Edward

Administrator alleges distributions of the bulk of the estate to himself and to devisee Hunter Donald. No petition for preliminary distribution was ever filed or granted. Administrator had no authority to distribute either real property or cash to any devisee of the estate. It is recommended the court decline to approve all impermissible preliminary distributions. Court determination is needed.

The court has previously determined in adversarial proceedings that reasonable attorney fees for the estate litigation concerning title to the real property was \$25,000. Counsel has declared that the judgment went unpaid and was discharged in bankruptcy. Court determination is needed as to reasonable extraordinary fees.

3. S-PR-0012444 In Re the James E Chapman Rev Trust

Appearance is required for continued hearing on amended petition to determine invalidity of 1st and 2d trust restatements and for other relief.

Missing 30 days' personal service of notice of hearing with copy of the amended petition to Carol Barnes. Prob.C. § 851(a)(1)); C.R.C. 7.53. Proof of service of notice of hearing for amended petition shows only mailed service.

4. S-PR-0012486 In Re the Steven Ledesma Jr Spec Needs Trust

No appearance is required. Motion for reconsideration is to be continued to October 28, 2026, 1:00 p.m., in Department 3, to be heard by Commissioner Michael A. Jacques.

5. S-PR-0012906 In Re the Estate of Brooks, Jarrod Paul

Appearance is required for hearing on petition for instructions and for other relief.

Note: estate administration was required to conclude in January 2026. Prob.C. §§ 12200(a) & 12201. No account or report has been filed.

6. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will. Prob.C. § 8250(a).

Ex parte application for trial preference

Appearance is required for hearing on ex parte application for trial preference.

It is again recommended the application be denied for the reasons set forth in prior calendar notes.

7. S-PR-0013051 In Re the Estate of Shackelford, Carol Len

Appearance is required for hearing on motion to compel delivery of records under C.C.P. § 129.

It is recommended the motion be denied, as follows.

Administrator Cheley Hokanson has not invoked any procedure which permits relief. Coroner records may be obtained under C.C.P. § 129 by one of two methods: first, by a written authorization which includes requisite information, whether or not a civil action is pending (C.C.P. § 129(a)(3)(A)); second, by a subpoena, but only when issued by a "party who is a legal heir or representative of the deceased person in *a pending civil action*" (C.C.P. § 129(a)(3)(B)).

Administrator relies entirely on the (a)(3)(B) subpoena process. However, no civil action between administrator and any other person concerning decedent's death is known to court to be pending in this or any other jurisdiction. The second, third, and fourth amended petitions to administer the estate cannot support administrator's subpoena for at least two reasons. First, administrator offers no legal authorities showing that a petition to administer estate is a petition relating to the death of the decedent where coroner photographic and video evidence may be used, as required by C.C.P. § 129. Second, any right to discovery under the petitions to administer estate expired when the 4th amended petition was granted. An administrator is not entitled to conduct discovery or issue witness subpoenas except in a pending action. See Prob.C. § 1000(b). The motion and requested sanctions must, accordingly, be denied.

The motion is additionally moot because administrator now concedes that the coroner has released the requested information.

Finally, although Placer County and the Placer County Sheriff's Office opposed this petition as real persons in interest for Sheriff-Coroner-Marshall Wayne Woo, administrator made now showing of any kind to support any relief against responding persons "Deputy Alexis Bliss," "Deputy Christopher Sutherland," "Ross Byers," "CDC E. Hintze," "Sgt M. Cuevas," "Sgt Nathaniel Giovanetti," "Vanessa Garcia Flores," "Stephanie Hicks," and "Aimee Kincade." All relief must be denied as to these persons.

These calendar notes are not a tentative ruling by the court on the merits of the motion, contrary to the statement made in administrator's renewed reply filed September, 4, 2026. Instead they are offered to assist the parties and persons involved and the court to prepare for the hearing. Local Rule 80.4.1.

Note: the court had reserved a hearing date for a petition to determine estate property. No such petition has been filed, despite the several notices of hearing filed June 20, 2025, July 11, 2025, and May 18, 2026. The court made clear at the June 5, 2026, hearing that administrator's 4th amended petition to administer estate was not an

appropriate petition in which to assert § 850 claims. The reserved hearing for the intended petition to determine estate property was accordingly dropped.

8. S-PR-0013289 In Re the Estate of Wiley, Peter Cornelius

Appearance is required for continued hearing on petition for final distribution.

This matter was previously continued to address the following calendar notes, both of which remain unresolved:

Petitioner response is needed: petitioner reports that estate real property was sold for \$525,000. The allegations instead establish that no real property was sold (real property remains in the estate; there are no proceeds of sale in the estate). Petitioner and other heirs appear to have agreed upon a valuation for distribution of the property. Valuation change for distribution purposes does not constitute sale of property. Because no sale occurred, there is also no gain on sale of real property for any purpose, including calculation of attorney fees.

Proposed distribution is contrary to intestacy. As prayed, petitioner would receive approximately 20.4% of the estate; Chorny, 26.5%; and D Wiley 53%. Intestacy requires equal distributions of assets determined by date-of-distribution value; petitioner offers no factual or legal basis for unequal distributions of the estate.

9. S-PR-0013296 In Re the Estate of Bartels, Frank Virgil

Appearance is required for fourth bond review hearing.

Missing inventory and appraisal, which is now overdue. Missing other information concerning the need for bond.

10. S-PR-0013477 In Re the Klusnick Fam Rev Trust

Appearance is required for continued hearing on first / final (first post-death) account, as supplemented.

11. S-PR-0013612 In Re the Julius C Gabriele Liv Trust

Petition to determine trust terms and to instruct trustee

Appearance is required for continued hearing to determine trust terms and to instruct trustee.

Trustee's motion for summary judgment

Appearance is required for hearing on trustee's motion for summary judgment.

12. S-PR-0013752 In Re the Estate of Johnson, Margaret Burt

Court determination is needed: notice as previously published omits ¶ 4 concerning admission of a will to probate.

13. S-PR-0013865 In Re the Estate of DeSantis, Donald Anthony

Missing original will. Prob.C. § 8200(a). Petitioner is required to file the original will—not merely a copy—with the court.

Missing required allegations at ¶ 5a(3)-(4) (RDP) and (7)-(8) (issue of predeceased child(ren)). Missing relationship(s) of persons listed in ¶ 8 to decedent.

Missing declaration re trust terms. Local Rule 80.2.1.

14. S-PR-0013960 In Re the Joseph & Doris B Moreno Fam Trust

Appearance is required for continued hearing on petition to compel trustee to account.

15. S-PR-0013979 In Re the John Family Trust

Petition to compel trustee account

Appearance is required for continued hearing on petition to compel trustee account.

Trustee account

Appearance is required for hearing on trustee account.

16. S-PR-0013986 In Re the Estate of Dedeaux, Julie Ann

Missing proof of publication of notice of hearing for petition to administer estate. Proof of publication filed May 22 is not a publication of notice of hearing.

Missing required allegations at ¶ 5a(3)-(4) (RDP).

Clarification is needed: ¶¶ 5 & 8 allege decedent was survived by 3 children; ¶ 6f alleges decedent was survived by no issue (¶ 6), no issue of parents (¶ 6b) and no issue of grandparents (¶ 6d). Children are issue, issue of parents, and issue of grandparents.

Missing waivers of bond by Garrett Dedeaux and Tara Dedeaux.

Note: IAEA powers are not requested (¶ 1c).

17. S-PR-0013987 In Re the Robert and Gwen Wilson Trust

Appearance is required for continued hearing on petition to remove trustee and compel trustee account.

Clarification is needed: petitioner alleges that Claudia Wilson is a surviving child of predeceased beneficiary Robert Wilson III. However, the attachments to the petition appear to include an unauthenticated letter by Claudia Wilson wherein she states she is a surviving spouse of Robert Wilson III. Her status as spouse or issue must be to apply Prob.C. § 21110.

Clarification is needed: petitioner alleges that Claudia Wilson and Lisa Wilson are "named" in the trust. Petitioner does not identify provisions naming either of these individuals.

It is recommended the court require suspended trustee to account from the date of Gwen Wilson's death to no earlier than March 1, 2026, and require trustee to serve notices to all beneficiaries in conformity with the requirements of Prob.C. § 16061.7 et seq.

Note: no notice has been given to trustee of the continued hearing, her suspension, or the court's advisement that C.C.P. § 177.5 sanctions may be awarded against trustee upon failure to appear.

18. S-PR-0013990 In Re the Estate of Roznos, Carmen R

Additional information is needed: ¶ 8 identifies two siblings of decedent, one nephew, 2 stepchildren, and 8 step-grandchildren. Additional allegations are needed to clarify the relationships of the nephew and step-grandchildren to decedent, including the persons related parent and whether the applicable parent survives or pre- or post-deceased.

Missing sufficient declaration re terms of beneficiary trust (or authenticated copy of beneficiary trust). Local Rule 80.2.1 requires identification of all trustees, present or future.

19. S-PR-0013995 In Re the Calvert Fam Trust

Petition to determine trust property is recommended for approval as prayed.

20. S-PR-0014171 In Re the Estate of Silva Isanovic

Missing sufficient notice of hearing for petition to administer estate. Notice as filed and published is for a September 4 hearing date that was changed by the court. The court sent an order changing the hearing date on June 9.

21. S-PR-0014178 In Re the Estate of Johnson, Caroline Maxine

Missing sufficient notice of hearing for petition to administer estate. Notice filed May 7 was for a September 4 hearing date that was changed by the court. The court sent an order changing the hearing date to petitioner at his address of record on June 9, but the order was returned as undeliverable. Missing proof of service of sufficient notice of hearing.

Missing proof of publication of notice of hearing for petition to administer estate.

Missing identification of proposed administrator (¶ 2b).

Missing required allegations at ¶ 5a(3)–(4) (RDP) and (7)–(8) (issue of predeceased child(ren)).

Clarification is needed: allegations at ¶ 5a(3) allege decedent left children; allegations at ¶¶ 6–7 allege decedent left no issue; missing relationship(s) of persons listed in ¶ 8 to decedent.

Petitioner response is needed concerning request blocked account: petitioner alleges the estate is comprised almost entirely of real property; petitioner requests only limited IAEA powers, which would not permit administrator to sell real property without court approval. Disposition of sale proceeds (including bond or blocked account deposit) are considered in each petition to approve sale of real property. Blocked account request may be premature.

22. S-PR-0014180 In Re the Estate of Blamey, Barry Alvin

Missing notice of hearing for spousal property petition. Missing proof of service of notice of hearing.

Missing required allegations concerning testacy or intestacy (¶ 4c).

Missing required allegations concerning issue of predeceased child(ren)) (¶ 5a(2)).

Missing Attachment 7 (factual basis for the requested relief).

Attachment 7a is incomplete: missing legal description of subject property; missing title / ownership information (incomplete document does not identify any grantee / owner); missing delineation of decedent's community and / or separate property interests (Attachment 7a may include only decedent's community and / or separate property interests).

Missing ¶ 7b and Attachment 7b (see ¶ 1b).

23. S-PR-0014188 In Re the Lauermann Fam Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

24. S-PR-0014189 In Re the Estate of Callender, Robert John

Spousal property petition is recommended for approval as prayed.

25. S-PR-0014190 In Re the Estate of Gunion, Denis R.

Missing service of notice of hearing for petition to administer estate to Robin Merten. Missing proof of publication of notice of hearing.

Missing original will. Prob.C. § 8200(a).

Clarification is needed: attached will identifies child Robin Merten who is not included in ¶ 8 of the petition, without explanation.

26. S-PR-0014388 In Re the Petition of Aristo, Angelo

Appearance is required for hearing on petition to establish fact of marriage.

Declaration in support omits any information at ¶¶ 4–6.